



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

OCT 10 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11979

EXPIRATION DATE: **October 31, 1997**

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: InLiner USA
Houston, TX
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a Resin solution, injected into a polyester felt liner configuration which is shipped in a refrigerated trailer or freight container containing dry ice to maintain temperature control. This exemption provides no relief from any regulation (including 49 CFR 173.24) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.242.
5. BASIS: This emergency exemption is based on the application of InLiner USA dated October 9, 1997, submitted in accordance with 49 CFR 107.117.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Resin solution, flammable*	3	UN1866	II

*This material requires temperature control.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 10 1997

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA